United Real Estate

AI Policies, Guidelines & Procedures for Real Estate Agents

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1) Purpose & Scope

These policies set standards for how United Real Estate sales associates ("agents") may use Artificial Intelligence (AI) tools in transactions, marketing, and advertising. The goals are to: (i) improve productivity, (ii) protect consumers, (iii) ensure truthful, non-discriminatory advertising, and (iv) maintain compliance with applicable laws, MLS rules, and the NAR Code of Ethics.

NOTE: *At no point shall large language models or any AI technologies be used to analyze, process, store, or otherwise interact in any way with any of United Real Estate's Confidential Information, including without limitation training, developing, adapting, modifying, or enhancing AI models, tools, and/or components. For the purposes of this policy, "interact" includes but is not limited to uploading, sharing, or referencing confidential information in any AI-powered platform or tool. Similarly, "analyze" and "process" refer to any operation where confidential information is reviewed, evaluated, or utilized by AI systems for any purpose. These terms are defined to ensure consistent understanding and robust protection of sensitive data and intellectual property rights. Even if consent is granted, the use of DeepSeek or DeepSeek derivatives is strictly prohibited, reinforcing the seriousness of this policy and leaving no room for exceptions.*

2) Definitions

Artificial Intelligence (AI): Software that generates or evaluates content or predictions, including 'generative AI' that produces text, images, audio, or video.

AI output: Any content an AI tool produces (copy, captions, images, voiceovers, chat responses).

Sensitive data/PII: Information that identifies an individual (e.g., name + phone/email; financial or health info). See state breach laws and privacy rights for examples of protected categories.

3) Core Principles

Truthful, clear, non-misleading

- Advertising must present a true picture and avoid deception, including where AI tools are used (NAR Code of Ethics, Article 12)
- Do **not** exaggerate AI capabilities or make claims you can't substantiate (e.g., "AI guarantees best price"). (FTC truth-in-advertising & AI enforcement).

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Fair Housing (no discrimination, no steering)

- Ads and statements must not express preferences/limitations based on protected classes, and media placement/targeting cannot exclude protected groups. (FHA; 24 C.F.R. 100.75).
- These rules apply to digital platforms and algorithmic ad tools as well as print.

Human oversight ('human-in-the-loop')

- AI can draft; **agents must review, fact-check, and approve** all outputs before use.

Privacy & data minimization

- Only the minimum necessary client data should be entered into third-party AI tools; honor consumer privacy rights.

4) Legal & Standards You Must Follow

Fair Housing Act (FHA) – ad content and audience selection - Do not "make, print, or publish" any notice/statement/advertisement indicating a preference/limitation; do not select media/locations that deny segments of the market information about housing opportunities. Applies to online targeting and algorithmic ads.

NAR Code of Ethics (Article 12) - "True Picture" in all advertising; applies to electronic communications and AI-assisted materials.

FTC Endorsement Guides - disclose material connections; don't buy/seed fake reviews; platforms' built-in disclosure tools may be insufficient.

FTC AI deception enforcement - avoid synthetic testimonials/reviews and bots; new rule prohibits fake or AI-generated reviews and deception in endorsements.

TCPA One-to-One Consent Rule - Use **one-to-one prior express written consent** for autodialed/AI-assisted telemarketing texts/calls; the FCC's "one-to-one" rule takes effect **Jan 27, 2025**. Keep records of consent.

CAN-SPAM Act - truthful headers/subjects, identify ads, include a physical address, provide/honor opt-out.

MLS Rules & Copyright - Virtual staging must be clearly disclosed; photos must present a true and accurate picture; do not add/remove permanent fixtures or hide defects; follow your local MLS rules. Ensure you own or have a license to use listing photos; misuse can create copyright liability—keep your photographer licenses on file.

5) Acceptable vs. Prohibited AI Uses

Permitted (with human review):

- Drafting listing descriptions, flyers, captions, alt-text, showing remarks (no FHA-sensitive terms; no “steering”).
- Summarizing public property data (verify facts and MLS/IDX display rules).
- Creating virtually staged interiors when clearly labeled and not altering permanent features or concealing defects.
- Drafting compliant email/social messages that meet CAN-SPAM and FTC endorsement requirements (you must add real disclosures).
- Chatbot triage on websites that hands off to a human for advice/negotiations (never provide legal/financial advice)

Prohibited:

- Using AI to target or exclude audiences by protected characteristics (explicitly or implicitly), or to create content suggesting preferences/limitations.
- Generating or amplifying fake or AI-fabricated reviews/testimonials.
- Image edits that misrepresent property condition/size or add/remove permanent features; altering exteriors beyond allowable décor.
- Auto-dialed or AI-assisted telemarketing texts/calls without valid, one-to-one prior express written consent.
- Uploading contracts, SSNs, bank statements, or other sensitive PII into non-approved AI tools. Observe privacy laws and brokerage data handling rules.

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6) Standards for AI-Generated Content

1. Mandatory labeling (when material):

Clearly indicate “Virtually Staged” on each applicable photo and in public remarks as required by your MLS.

Where an AI tool creates synthetic media that could materially influence a consumer (e.g., voiceovers that mimic a person, simulated neighborhood scenes), label the content to avoid deception. (FTC crackdown on deceptive AI).

2. Substantiation & claims:

Do not claim AI guarantees outcomes (“best offer,” “fastest sale”) unless you have evidence; endorsements must disclose material connections.

3. Fact-check & records:

Agents must verify all facts (beds/baths/SF/schools/HOA fees) before publishing. Maintain an AI Review Log with source notes for 2 years (or brokerage retention period).

4. Respect IP & licenses:

Confirm rights to use listing photos, floorplans, maps, and model-generated media; keep photo licenses/work-for-hire agreements accessible.

7) Daily Operations: AI Integration Procedures

A. Listing Creation Workflow

1. Draft with approved AI tool → 2) Agent verifies facts (MLS/public records) → 3) FHA/steering review (no “perfect for families,” “safe for [group]”) → 4) Broker/designated reviewer approves → 5) Publish. (FHA advertising/targeting limits).

B. Virtual Staging

- Use interiors only; **no** changes to permanent fixtures; **no** concealment of defects; label “Virtually Staged.” Keep originals and staged versions in your file.

C. Digital Advertising & Social

- When using influencers, team members, or clients in endorsements, add **clear & conspicuous** disclosures (e.g., “#Ad,” “#PaidPartner”) and monitor for compliance.
- Do not deploy audience filters that could exclude protected classes, even indirectly (e.g., “new parents,” “Spanish speakers”) in housing ads.

D. Lead Gen, Texting & Calling

- Capture **one-to-one prior express written consent** for any automated telemarketing texts/calls, effective Jan 27, 2025; store consent records (form, date, IP, page).
- For email campaigns, comply with CAN-SPAM (truthful header/subject, physical address, opt-out link, prompt honoring of opt-outs).

E. Client Communications & Chatbots

- Chatbots may answer basic FAQs and collect contact info, but must **escalate** pricing, strategy, legal, or negotiation questions to a human.
- Provide a privacy notice if the bot collects personal data; honor California rights if applicable.

F. Data Handling & Vendor Vetting

- Do not upload contracts, IDs, financials, or non-public client data to unapproved tools.
- Before adopting an AI vendor: confirm data security, model training/retention, ability to delete data, and IP terms.
- Maintain a Data Map and Incident Response Plan consistent with state breach notification laws (all states require notice after qualifying incidents).

8) Recordkeeping

- AI Review Logs (prompts, drafts, final text, fact sources) – retain per brokerage policy.
- Consent records (TCPA) – retain at least 5 years (recommended).
- Photo licenses and staging disclosures – retain with listing file.

9) Incident Response

Trigger events include: discriminatory ad, deceptive claim, improper robo-texting, fake review, data exposure, or unlicensed photo use.

Steps:

1. **Pause** the content/campaign immediately.
2. **Notify** Managing Broker + Compliance within 24 hours.
3. **Preserve** evidence: screenshots, logs, vendor correspondence.
4. **Remediate**: correct/remove content; send required notices (e.g., CAN-SPAM opt-out process updates; breach notifications as applicable); consider client make-goods.

5. **Report**: If regulators are involved (FTC/FCC/HUD/CFPB), Legal will lead. (FTC is actively enforcing deceptive AI uses).

10) Enforcement

Violations may result in content takedown, retraining, and/or disciplinary action under brokerage policy and state law, up to and including termination or release of license sponsorship.

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Acknowledgment of AI Policy Receipt and Compliance

I acknowledge that I have received, read, and understood the United Real Estate AI Policies, Guidelines & Procedures. I agree to comply with the standards and procedures outlined in this document.

Agent Name: _____

Signature: _____

Date: _____